

have discovered that psychological injury or illness occurring after the age of majority was caused by the sexual assault, whichever period expires later..." *Code of Civil Procedure* §340.1(c) provides further that "[a]n action described in paragraph (2) or (3) of subdivision (a) shall not be commenced on or after the plaintiff's 40th birthday unless the person or entity knew or had reason to know, or was otherwise on notice, of any misconduct that creates a risk of childhood sexual assault by an employee, volunteer, representative, or agent, or the person or entity failed to take reasonable steps or to implement reasonable safeguards to avoid acts of childhood sexual assault. For purposes of this subdivision, providing or requiring counseling is not sufficient, in and of itself, to constitute a reasonable step or reasonable safeguard. Nothing in this subdivision shall be construed to constitute a substantive change in negligence law." The Court agrees with Plaintiff's interpretation of this Statute that under the foregoing provisions, Plaintiff is authorized to bring this action under Code of Civil Procedure §340.1 because Plaintiff has alleged that (and the Court finds a triable issue of material fact as to whether) Defendants "knew or had reason to know, or was otherwise on notice, of any misconduct that creates a risk of childhood sexual assault by an employee, volunteer, representative, or agent" or "failed to take reasonable steps or to implement reasonable safeguards to avoid acts of childhood sexual assault." [See, UMF Nos. 19-25, 49, 55, 61-64, 67-75, 82-84; AUMF Nos. 12-23]. The Motion for Summary Adjudication as Issue Twenty-Seven is DENIED.

In regard to Issue One – the Motion for Summary Judgment on the First Cause of Action for Negligence – the Court finds a triable issue of material fact as to whether Defendant breached its duty under vicarious liability and whether Defendant is entitled to discretionary immunity under *Government Code* §820.2 in relation thereto, as discussed in detail above, and as such, the Motion for Summary Judgment is DENIED.

Counsel for the Defendant shall prepare and submit a form of order consistent with this ruling within two weeks.

Additionally, the Court continues the Case Management Conference on September 23, 2026 to November 18, 2026 at 10:30 a.m. Case Management Conference Statements are to be timely filed and served.

## **5. 26CV01749 ATTEBERY, JIMMY v. CLIMATE AND ENERGY SOLUTIONS, INC**

*EVENT: Defendant's Motion to Reclassify Case as a Limited Civil Case*

A party seeking to reclassify a case from unlimited to limited faces a "high threshold". *Hiona v. Superior Court* (2020) 48 Cal.App.5<sup>th</sup> 866, 872. Under California case law, the trial court must deny the motion to reclassify unless it appears to a "legal certainty" that the plaintiff's damages will necessarily be less than the jurisdictional threshold. *Id.*; *Ytuarte v. Superior Court* (2005) 129 Cal.App.4<sup>th</sup> 266, 278. This legal certainty standard is not met if a verdict within the unlimited court's jurisdiction is "possible". *Ytuarte v. Superior Court, supra*, 129 Cal.App.4<sup>th</sup> at 277. To defeat a motion to reclassify, the opposing party must only present evidence demonstrating a possibility that the verdict

will exceed the jurisdictional boundary. *Id.* The Court finds that Plaintiff has done so here. Additionally, the Court agrees with the Plaintiff that the requested relief of a declaration under *Code of Civil Procedure* §1060 concerning the parties' rights and obligations arising from Defendant's alleged website conduct [See Complaint, Prayer, Paragraph (e)], does not fall under the purview of *Code of Civil Procedure* §86(1)(7), and thus this action cannot proceed as a limited civil case. The Motion is denied.